

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Philip A. Brimmer



Civil Action No. 08-cv-00495-PAB-MJW

REGISTRY SYSTEMS INTERNATIONAL, LTD.,

Plaintiff,

v.

1 DOMAIN SOURCE, LTD.,

Defendant

VINCENT HAMM and
AIM HIGH!, INC.,

Defendants, Counterclaimants, and Third Party Plaintiffs,

v.

EDWARD J. SWEENEY, and
CAPITAL NETWORKS, PTY., LTD.,

Third Party Defendants.

SPECIAL VERDICT FORM A - RSI'S CLAIMS

We, the jury, present our Answers to the Questions submitted by the Court, to which we have all agreed:

CONVERSION

QUESTION NO. 1: Did RSI prove by a preponderance of the evidence its conversion claim against Vincent Hamm?

ANSWER No. 1: YES (yes or no)

QUESTION NO. 2: Did RSI prove by a preponderance of the evidence that it suffered damages as a result of Vincent Hamm's conversion of its property?

ANSWER No. 2: YES (yes or no)

If you answered either Question No. 1 or Question No. 2 "No," go to Question No. 4. If you answered both Question No. 1 and Question No. 2 "Yes," answer Question No. 3.

QUESTION NO. 3: What is the total amount of RSI's actual damages resulting from its claim of conversion against Vincent Hamm? Actual damages are those damages described in Instruction No. 16. You should answer "0" if you determine there were none.

ANSWER No. 3: \$ 212,685.⁰⁰

QUESTION NO. 4: Did RSI prove by a preponderance of the evidence its conversion claim against Aim High?

ANSWER No. 4: No (yes or no)

QUESTION NO. 5: Did RSI prove by a preponderance of the evidence that it suffered damages as a result of Aim High's conversion of its property?

ANSWER No. 5: No (yes or no)

If you answered either Question No. 4 or Question No. 5 "No," go to Question No. 7. If you answered both Question No. 4 and Question No. 5 "Yes," answer Question No. 6.

QUESTION NO. 6: What is the total amount of RSI's actual damages resulting from its claim of conversion against Aim High? Actual damages are those damages described in Instruction No. 16. You should answer "0" if you determine there were none.

ANSWER No. 6: \$ 0

BREACH OF FIDUCIARY DUTY

QUESTION NO. 7: Did RSI prove by a preponderance of the evidence its breach of fiduciary duty claim against Vincent Hamm?

ANSWER No. 7: Yes (yes or no)

QUESTION NO. 8: Did RSI prove by a preponderance of the evidence that it suffered resulting damages from Vincent Hamm's breach of fiduciary duty?

ANSWER No. 8: Yes (yes or no)

If you answered either Question No. 7 or Question No. 8 "No," go to Question No. 10. If you answered both Question No. 7 and Question No. 8 "Yes," answer Question No. 9.

QUESTION NO. 9: What is the total amount of RSI's actual damages resulting from its claim of breach of fiduciary duty against Vincent Hamm? Actual damages are those damages described in Instruction No. 28. You should answer "0" if you determine there were none.

ANSWER No. 9: \$ 52453

UNJUST ENRICHMENT

QUESTION NO. 10: Did RSI prove by a preponderance of the evidence its unjust enrichment claim against 1 Domain Source?

ANSWER No. 10: No (yes or no)

QUESTION NO. 11: Did RSI prove by a preponderance of the evidence that it suffered resulting damages from 1 Domain Source's unjust enrichment?

ANSWER No. 11: No (yes or no)

If you answered either Question No. 10 or Question No. 11 "No," go to Question No. 13. If you answered both Question No. 10 and Question No. 11 "Yes," answer Question No. 12.

QUESTION NO. 12: What is the total amount of RSI's actual damages resulting from its claim of unjust enrichment against 1 Domain Source? Actual damages are those damages described in Instruction No. 16. You should answer "0" if you determine there were none.

ANSWER No. 12: \$ 0

Award of actual damages to RSI:

\$ 265,138 against Vincent Hamm

\$ _____ against Aim High!, Inc.

\$ _____ against 1 Domain Source, Ltd.

IF YOU FIND THAT RSI DID HAVE DAMAGES AND YOU FURTHER FIND THAT ONE OR MORE OF VINCENT HAMM, AIM HIGH, AND 1 DOMAIN SOURCE WAS AT FAULT, THEN ANSWER THE FOLLOWING QUESTIONS:

QUESTION NO. 13: Did RSI's actions cause or contribute to the damages it incurred?

ANSWER NO. 13: Yes (yes or no)

QUESTION NO. 14: Did Edward Sweeney's actions cause or contribute to the damages RSI incurred?

ANSWER NO. 14: Yes (yes or no)

QUESTION NO. 15: Did Capital Network, PTY's actions cause or contribute to the damages RSI incurred?

ANSWER NO. 15: No (yes or no)

QUESTION NO. 16: Did Kim Keeling-Hamm's actions cause or contribute to the damages RSI incurred?

ANSWER NO. 16: No (yes or no)

QUESTION NO. 17: With regard to RSI's conversion claim, taking as 100 percent the combined fault of all parties you find were at fault, what percentage of fault, if any, was caused by Vincent Hamm, Aim High, 1 Domain Source, RSI, Edward Sweeney, and Kim Keeling-Hamm. Enter the figure of zero "0" for any party you decide was not at fault or whose fault you decide was not a cause of any of RSI's damages.

ANSWER NO. 17:

Percentage charged to Vincent Hamm	<u>50</u> %
Percentage charged to Aim High	<u>0</u> %
Percentage charged to 1 Domain Source	<u>0</u> %
Percentage charged to RSI	<u>25</u> %
Percentage charged to Edward Sweeney	<u>25</u> %
Percentage charged to Kim Keeling-Hamm	<u>0</u> %

QUESTION NO. 18: With regard to RSI's breach of fiduciary duty claim, taking as 100 percent the combined fault of all parties you find were at fault, what percentage of fault,

if any, was caused by Vincent Hamm, Aim High, 1 Domain Source, RSI, Edward Sweeney, Kim Keeling-Hamm, and Capital Networks, PTY. Enter the figure of zero "0" for any party you decide was not at fault or whose fault you decide was not a cause of any of RSI's damages.

ANSWER NO. 17:

Percentage charged to Vincent Hamm	<u>100</u> %
Percentage charged to Aim High	_____ %
Percentage charged to 1 Domain Source	_____ %
Percentage charged to RSI	_____ %
Percentage charged to Edward Sweeney	_____ %
Percentage charged to Kim Keeling-Hamm	_____ %
Percentage charged to Capital Networks, PTY	_____ %

Signatures of all jurors: